under the ordinary criminal law. The central government held out Section 19 as a crucial part of its strategy in securing swift trials in anti-terrorism cases.

Again, at first, Justice Pandian's opinion identified the serious problems with Section 19. Defendants from remote parts of the country with limited access to resources would effectively be denied a right of appeal as litigation in the Supreme Court is far more financially onerous than in a high court. To deny an appeal to the high court when defendants were merely charged (but not convicted) under TADA seemed illogical. Section 19, according to Justice Pandian, was an 'abnormal procedure' that 'denied fair play and justice'.[26] This unequivocal criticism did not result in a strikedown of Section 19. Instead, Section 19 was merely described as posing 'practical difficulties'[27] and upheld.

Section upon section of TADA – addressing matters such as the creation of special courts and the denial of 'anticipatory bail' for TADA offences – was upheld by the Supreme Court. The court struck down only a single section of TADA, which permitted identification through photographs rather than identification parades. This was somewhat peculiar, since neither of the parties addressed this issue in their submissions to the court.

The public reaction to the Supreme Court's decision was mixed. Some news reports in the immediate aftermath indicated that the decision would curb the misuse of TADA. A story in the *Times of India* carried the title 'SC ruling blunts TADA stringency'. The court had blunted the 'oppressive portions' of TADA despite upholding it, it said.[28] Scholarly opinion, however, was far less generous. One incisive commentary published in the *Economic and Political Weekly* described it as a judgement that was 'poor in language', 'poor in judicial philosophy' and 'poor in logic', that 'ruthlessly' put defendants in terrorism cases beyond the realm of the Constitution.[29]

To those familiar with the trajectory of the Supreme Court's constitutional decisions, the Kartar Singh judgement was seen as an outright abandonment of recent precedent that demanded a more rigorous analysis of legislation enacted by Parliament. Fundamental rights were